

TENTATIVE RULING

Case: **Abueg v. Taylor Morrison of California LLC**
Case No. CV2024-1770

Hearing Date: August 3, 2025 Department Fourteen 9:00 a.m.

Motion for summary judgment:

Cross-defendant DeSilva Gates Construction LLC's motion for summary judgment, or, in the alternative, summary adjudication is **DENIED**. (Code Civ. Proc., § 437c.) A motion for summary judgment must "be heard no later than 30 days before the date of trial, unless the court for good cause orders otherwise." (Code Civ. Proc., § 437c, subd. (a)(3).) As a jury trial is set for August 17, 2026, the initial hearing date (July 28, 2026) was less than 30 days before trial. (See *ibid.*) Cross-defendant did not obtain this Court's determination of good cause prior to the July 28, 2026, hearing date. (See *ibid.*; see also *Robinson v. Woods* (2008) 168 Cal.App.4th 1258, 1268 ["Unless and until the trial court found good cause, the notice of the hearing was invalid"].)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Trial readiness conference:

Parties are **DIRECTED TO APPEAR**.

TENTATIVE RULING

Case: **Barker v. Linaweaver**
Case No. CV2024-2810

Hearing Date: **August 3, 2026** **Department Fourteen** **9:00 a.m.**

Motion for leave to engage in discovery:

The Court declines to rule on defendants Raymond Scott Linaweaver and Nicole Jeanette Linaweaver's evidentiary objections to the declaration of Carmela Caramagno and supporting exhibits because the Court did not rely on evidence objected to in determining the motion.

Plaintiffs Alissa Barker and Bradyn O'Connor's motion for leave to engage in discovery regarding defendants' financial condition is **DENIED**. (Civ. Code, § 3295, subd. (c).) "[A]ny party shall be entitled as a matter of right to complete discovery proceedings on or before the 30th day... before the date initially set for the trial of the action." (Code Civ. Proc., § 2024.020, subd. (a).) Trial is set for August 24, 2026, requiring fact discovery to be completed on or before July 24, 2026. (*Ibid.*) On the motion of any party, this Court has not granted "leave to complete discovery proceedings...or to reopen discovery" – nor is any such motion pending. (Code Civ. Proc., § 2024.050, subd. (a); see also *Pelton-Shepherd Industries, Inc. v. Delta Packaging Products, Inc.* (2008) 165 Cal.App.4th 1568, 1586–1588.) Accordingly, this Court cannot consider whether to permit plaintiffs to obtain evidence regarding defendants' financial condition. (See Civ. Code, § 3295, subd. (c).) Plaintiffs are not prejudiced by this ruling, given that section 3295(c) provides the power of trial subpoena over the discovery of defendants' financial condition. The fact that plaintiffs made a pre-trial motion may be considered prior to the punitive damage phase of the trial and the ruling on production related to any subpoena that is issued for trial.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion for leave:

Plaintiffs' unopposed motion for leave to file second amended complaint is **GRANTED**. (Code Civ. Proc., §§ 473, 576; Cal. Rules of Court, rule 3.1324; Caramagno decl., ¶¶ 2-11, Exhibits A & B.) The proposed second amended complaint, attached as Exhibit A to the declaration of Carmela Caramagno, is deemed filed as of the hearing date. Also, the Court deems defendants' answer to the first amended complaint, filed March 14, 2025, the answer to the second amended complaint.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion in support of request for judicial notice:

Plaintiffs' unopposed motion in support of request for judicial notice of documents and filings in *Linaweaver v. Barker et al.* (Case No. CV2023-1835) is **DENIED WITHOUT PREJUDICE**. (Evid. Code, §§ 452, 453.) "Any matter to be judicially noticed must be relevant to a material